KELLY GIVES HIMSELF UP

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er. It is further stated that Attorney Sutton first met Kelly last year at Sutton, Nebraska, where Mr. Sutton, who was a candidate for governor of Nebraska, was introduced at a political meeting by the minister.

After the indictment against Kelly a bench warrant was issued for his arrest with a court order to the effect that when in custody he should be committed to the Polk county jail in Des Moines to await trial. However, when Kelly appeared in the county seat Monday he was placed in the Red Oak jail, and whether or not he will now be moved to Des Moines was to have been determined at a conference of the attorneys held in Red Oak yesterday afternoon, which was attended by County Attorney Wenstrand, Attorney General Havner of Des Moines, Attorney Mitchell of Council Bluffs and Judge Sutton. In case the attorneys would not agree as to the place of confining the prisoner and the time of holding his trial by jury the matter would be submitted to Judge Woodruff who is now in Red Oak presiding at the May term of district court, having resumed the work of the May session yesterday. Monday Attorney Sutton stated that he would insist upon an immediate trial of his client.

Some of the Evidence

Concerning some of the evidence against Kelly, Attorney General Havner Monday night gave out the following statement which was published in yesterday's Des Moines Register:

"Lynne George J. Kelly, the man indicted for the murder of the J. B. Moore family and Stillinger girls at Villisca, was born in England and came to this country about ten years ago. At the time that the crime was committed Kelly was a student and in attendance on a theological seminary at Omaha. Kelly was preaching at Macedonia, Iowa, and at a small country church near Villisca on alternate Sundays.

"About three weeks before the crime was committed in June, 1912, a reputable witness testified that Kelly was discovered looking into the house of the witness, in a bedroom where the wife of the witness was moving about the room in her night clothes, and on being called Kelly ran towards his residence. It was also testified to that Kelly would be seen about town at all hours of the night wandering, apparently, aimlessly about.

"On the night that the crime was committed Kelly came from his country charge to the town of Villisca and attended a children's day exercise at the Presbyterian church at the evening service, in the city of Villisca. After the evening service he went to the home of the Presbyterian minister and was shown to his room at about 10:30 or 11 o'clock. The minister and his family slept in a tent in the back yard. The minister testifies that it was the arrangement with Kelly that Kelly was to get up in the morning and take the 5:19 train to his home at Macedonia The minister and his wife testified that they do not know what time Kelly got up, and all that they know is that he was gone when they got up in the morning, which was at quite a late hour.

The Case Against Kelly

"Between 8:30 and 9 o'clock on the following morning (Monday) a reputable witness testifies that Kelly told him in Macedonia the details of the murder at Villisca and of the number of people that had been killed, and this witness also testifies that Kelly told him at that time that he (Kelly) had been unable to sleep during the previous night and had gone out on the balcony of the house where he was staying at about 1 o'clock at night and had heard the thud of the ax that killed the Moore people, and that he was one of the first men in the house after the murder was discovered. The facts are that the murders were not discovered until about 8:30 or 9 o'clock and that nobody but the man who committed the crime ever knew how the murders were committed.

"Another reputable witness testified that at a later date Kelly told him that he heard the thud of the ax that killed the Moore people and that the man who committed the murder went to the house about 1 o'clock and while he was in the house he heard some one going along the street; that the murderer went out on the back porch until the parties had passed the house and then went back in and finished the job.

"Within two or three days after the crime was committed, a package of laundry was left with the Bluff City laundry in Council Bluffs without any name being left or any identifying mark put on it, but with a slip appended requesting that the shirt be placed in the basket of laundry to be returned to Macedonia. The girl who unwrapped the laundry says that there was a shirt in the package that had been evidently washed, or an attempt had been made to wash it by hand, for it was still quite moist, and appeared to be saturated with blood. This laundry was sent back in the Macedonia basket unmarked, and Kelly came to the drug store where the basket was received and claimed this laundry. He had made several trips to the drug store for it before it came.

"About a week after the murders were committed Kelly wrote a letter to the Presbyterian minister asking that arrangements be made for him (Kelly) to inspect the Moore house when he was in Villisca the next time (which would be the second Sunday following the murder). On this visit to Villisca Kelly stayed with the minister again and occuped an upstairs bedroom in the house, as formerly, and the testimony of the minister's wife is that no one could have gone from the house on this occasion without awakening them.

Wrote to Ross Moore

"On the twelfth day of July, 1912, Kelly wrote a letter to Ross Moore, brother of the murdered man, and among other things said that there was a strange man at the depot that morning who spoke to him and who he believed got on the same train with him. In his letter he stated that he was almost sure to a certainty that this was the man who committed the murder. He (Kelly) in this letter stated that this strange man was up and down the streets of Villisca on Friday and Saturday nights until 4 o'clock, and that he asked a certain party whom Kelly knew about the Presbyterian church, and that he was down by the river on Sunday and stayed there on Saturday night.

"He also says in his letter that the man was seen about the streets on Sunday night (just preceding the murder) at 10 o'clock, and also states, 'He was seen again running to the river between one and two. A young couple passed the house at 1:30, but saw and heard nothing.' Kelly also described in this letter a trip which he claims to have taken in the night on the second Sunday following the murder down to the Moore home, and describes the sensations that came to him. Kelly also made the request that he be given an opportunity to work on the case.

"Kelly continued in his pastorate at Macedonia for some time after the murder, and witnesses testify that at every opportunity he constantly talked about the murder. Late in the fall he surrendered his postition as pastor at Macedonia and at the small charge near Villisca and went to Carroll, Iowa, where he took up work there. Carroll witnesses state that he commenced talking about the Villisca ax murder there also and would say that he had been accused of the murder.

Asks Girls to Pose in Nude

"Witnesses testify that shortly after he went to Carroll he advertised for a class in stenography, and that he tried to get young girls to pose in the nude. While he was at Carroll he told one man that he was accused of this crime and asked him what he should do. Told him that he was suspected because he had not used his bed that night and that the reason he didn't go to bed was because he was nervous, and that he went down to the depot about an hour before his train and took the early morning train.

"He talked with other people at Carroll, among them a physician, who says that Kelly asked him whether a man who committed a murder could be punished if he was insane, and that the physician told him that he could not.

"The testimony of many witnesses is that Kelly seemed to be suspicious of every stranger he would see about town and would make inquiry as to whether or not they were detectives. He also asked the physician how a man would act who was insane. He also explained the shirt proposition by saying that he had gotten hair tonic on it, and at another time stated that the stain was catsup.

"After he left Carroll, which was some time in 1913, he went to Winner, South Dakota. While at Winner he did preaching and evangelistic work, and also stenographic work. He then ran an ad n the Omaha World-Herald seeking to employ a stenographer to act as model for pictures to be used in a book which we was writing. A young lady at Council Bluffs answered the ad and Kelly answered her letter. In this first letter to the girl Kelly asked what experience she had had in typewriting, and told her that whatever transpired between them should be absolutely secret; whether she would be free to do as she pleased and free to go anywhere; whether or not anyone had any strings or her, and whether she could be out at nights if she wanted to; whether she was engaged to be married, stating that he wanted a girl as a stenographer and typewriter for an important high class novel that he was writing; whether she could meet him in Omaha.

"He stated in his first letter that his last stenographer met him on Twenty-fourth and Farnum evenings and they would go out together to work, and he asked this girl whether she would object to having supper with him sometimes at the Calumet before they went to work. He stated in his letter that he would do his dictating and work in a private house, and in that house everything was all right and no one would interfere with them. He asked the girl to tell him frankly and fully what she thought of fine art pictures—what she thought of studies of live pictures of the human form, such as "September Morn," and the more classic pictures as the "Venus" and the "Bath of Psyche," whether she had any objection to pictures of art that are a study of the nude or undressed or undraped figure, saying, "Art is beautiful, and God made us so."

"He also asked her if she would be willing to do posing work in a place where she and Kelly would be absolutely secret and alone and no suspicion and where nobody would know them or know what they were doing; said he had no bad habits; didn't smoke, drink, play cards, dance or swear; that he had the best references; asked her if she would be willing to try it out all the way through; said that whoever got to work for him would have to be willing to pose as he wished.

Arrested by Uncle Sam

"The young lady to whom this letter was written turned it over to her pastor and the pastor in turn notified the United States authorities at Council Bluffs. Afterwards the federal authorities ordered Kelly's arrest at Winner. When placed under arrest he remarked to the officers that he knew they were going to take him, that they wanted him in Villisca for the murders there and when he was informed that he was not being arrested for that crime, but for sending obscene matter through the mails he denied having anything to do with that matter, but when confronted with the letters he admitted having written them. He threatened violence to the officers at different times while in custody.

"Kelly was then taken from Winner to Sioux Falls where he was placed in jail. While in the jail at Sioux Falls he was guilty of a number of revolting immoral acts attempted on fellow prisoners. He admitted to several officers when questioned that he had committed the ax murder at Villisca and that he would like to do the same thing to the officers. When questioned about the immorality attempted in the jail he replied that that was nothing. He was extremely profane and irritable, and gave the authorities a great deal of trouble. He was finally adjudged insane and taken to the federal hospital at Washington, D. C., where he remained for some months.

"Upon his release there he was returned to Sioux Falls for trial under the indictment in federal court, but was never sentenced on his plea of guilty, being paroled to a gentleman in Sioux City. The record as kept by the authorities in Washington, discloses that he was extremely troublesome, going into violent fits of insanity and attempting to do violence to the attendants and patients, and screaming and indulging in the most extreme profanity. He also had a habit of secreting portions of meat and other articles of foodstuffs about his person and in his room, but with no apparent desire to eat them. The indictment was subsequently dismissed on account of his mental condition.

Was Again Arrested

"While he was in the custody of the Sioux City gentleman he had further trouble because of his desire to have his stenographers pose in the nude. He was rearrested and taken back to Sioux Falls and kept there in jail for some time, but returned to Sioux City, where he had further trouble in connection with the same matter. While in conversation with this Sioux City gentleman he talked repeatedly of the crime and stated that the shirt which had caused him trouble was covered with blood, but that this blood had got on the shirt when he cut himself with his razor. He also admitted having tried to wash out the blood.

"After Kelly left Sioux City he took up his ministerial work in Sutton, Nebraska, and a doctor of that city who treated Kelly, testified that while Kelly was at Sutton he would come to the office and would nervously inquire whether such and such a stranger was a detective and that they were after him. This happened many times and many witnesses testified along the same line. Witnesses also testified as to Kelly wandering about during the night.

"During the entire time of which we have history of this man since the murders, while in Sioux Falls, at Carroll, and while in the hospital at Washington, he repeatedly attempted violance on his attendants and at Carroll stated on one occasion that he would get a gun and kill some people whom he claimed he had a grievance against."

To Be Confined at Logan

Just as The Review goes to press it is informed that Judge Woodruff has ordered that Kelly be kept in the Harrison county jail at Logan. The time of holding the trial will be determined later.

A Market That Steadily Renews Itself

It does not look as though the market for this car could ever be entirely satisfied.

That sounds like a strange statement, but there is a sound reason for making it.

A shortage has continued, now, for two years and a half, in the face of a large and steady increase in output.

The shortage may not be local, or sectional, or seasonal, but it is national, universal and continuous.

Unlimited production is not consistent with Dodge Brothers scrupulous methods of manufacture.

They must always give to their car that overcare which the public expects from them.

It is the root, and the source, and the reason for that steadiness of demand we are describing.

They will never go beyond a production point which might place their reputation in jeopardy. A more remarkable recognition of merit on the part of the public it would be difficult to conceive.

Every increase in production is comfortably absorbed in an increased market.

The works in which the car is produced have grown till they are almost a city in themselves. But when the satisfaction of the market seems to be in sight, the horizon of that market widens and draws itself still farther away.

The reason for it all is so simple that it sounds almost absurd.

That simple reason is that the goodness of the car is seldom called into question.

The thoughts about it are the same thoughts in thousands of minds.

The market grows by what it feeds on—and what it feeds on is the performance of the car.

Deep and abounding satisfaction surrounds the sale and the use of practically every car that leaves the works.

Dodge Brothers are among the largest producers in the world.

But they will never imperil their production by sacrificing quality to mere quantity.

For that reason we believe the condition will always be what it is now.

We believe the goodness of the car will always produce a demand it will be impossible to entirely supply.

It will pay you to visit us and examine this car

OLIVER MOTOR CO.

Touring Car or Roadster, $885
Sedan or Coupe, $1315
All Prices in Villisca

The gasoline consumption is unusually low. The tire mileage is unusually high.

ACCIDENTS AFFECT MANY

(Continued from Page One)

say, when the wheels hit their heels. The pole being used for the tongue made the hitch too short for the larger ponies. This tongue was placed in the buggy for Shetland ponies.

Three accidents happened on Saturday. In the afternoon Frank Cooney suffered injuries when he fell from the roof of the new house he has in the process of construction at the corner of Fourth Avenue and First street. Mr. Cooney was on the roof at the northwest corner of the building at the time. His footing gave way and he fell back onto a temporary scaffold that had been made by placing some boards from one window to another. From there he fell into the frame of one of the windows, striking his side, fell to another temporary scaffold and then to the ground. The fall wrenched his back and one side and made him very sore for some time. Monday morning he tried to resume his work on the building, but found he must give it up on account of his injuries.

Another accident happened on the streets Saturday evening evening between six and seven o'clock. The J. T. Raney car, driven by Mrs. Raney, accidentally ran into the rear of Everett Bryson's buggy in the street in front of the Banes Store. This started Everett's team to running. They went into the park, collided with a tree and threw Everett from the buggy. Then then circled the park again before they were stopped. The buggy was almost demolished in the accident. Mr. Bryson suffered only minor injuries and considers that he was quite fortunate.

In another accident Saturday evening about 8:30 injuries to an Overland Six were the sum of the damages. Fred Bryson of the Banes Store was demonstrating a new car to Alva McCoy of southeast of Villisca. They were near the Mrs. P. A. Shires home on Fourth Avenue. Mr. McCoy was learning to drive the car and was at the wheel. They met another car and had turned to one side to give part of the road, when they struck soft dirt. This caused the car to swerve and they collided with a telephone post. The fender of the car was bent and the axle was set back on the springs from the jolt. Neither of the occupants were hurt and the damage to the car was comparatively slight.

REVIEW WANT ADS

FOR SALE—Several pure bred red and roan Shorthorn yearling bulls, extra good ones. S. A. Mathews, north of Villisca, Mutual phone. M-9-12-16-19—p.

WANTED—Want to buy seven or eight setting hens at once. Phone or call on J. H. Todd, Villisca. M-16-C.